

HEADNOTE

“1. With a handover to the postal company within the meaning of Rule 271 No. 6 b RoP, the Local Division Munich regularly counts one to two days after the handover to the postal address of the Court of Appeal Munich.

2. Accordingly, the constant practice at the Local Division Munich is to assume a filing by post two days later.”

COURT
Local Division in Munich

PATENT
EP1838002

KEYWORDS

Handover to postal company

Handling

PROCEEDINGS
Procedural order

Programmable hybrid transmitter

Local chamber Munich

Rule 271 Service of the Statement of claim

SUMMARY

The Local Division in Munich issued a procedural order. The patent at issue relates to a programmable hybrid transmitter. According to the headnotes of the decision, when documents are handed over to the postal company in accordance with Rule 271 No. 6 b RoP, the Local Division Munich typically counts one to two days after handover to the Court of Appeal Munich's postal address before the filing is deemed complete. Based on this consistent practice, the Local Division Munich regularly assumes that postal filings are received two days after handover to the postal service.